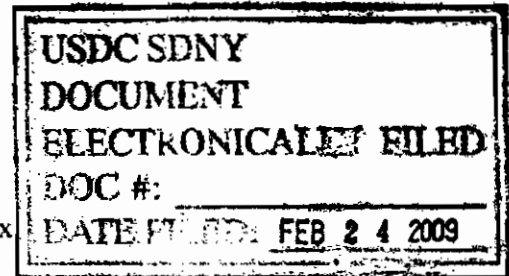


UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK



JAMES WATSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. LEANDER
FEAGGINS, P.O. NEIL LAWSON, P.O. CORTNEY
ALLEN, P.O. MARSHALL MONELL and P.O.s "JOHN
DOE" #1-5 (said names being fictitious, as the true names
are presently unknown), Individually and in their Official
Capacities,

Defendants.

**STIPULATION AND ORDER
OF SETTLEMENT AND
DISMISSAL**

08 Civ. 6555 (LTS)

WHEREAS, plaintiff commenced this action on or about July 23, 2008, by filing a complaint alleging, *inter alia*, violations of his state law rights and his civil rights pursuant to 42 USC § 1983; and

WHEREAS, defendants have denied any and all liability arising out of plaintiff's allegations; and

WHEREAS, the parties now desire to resolve the issues raised in this litigation, without further proceedings and without admitting any fault or liability; and

WHEREAS, plaintiff has authorized his counsel to settle this matter on the terms set forth below;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, as follows:

1. The above-referenced action is hereby dismissed, with prejudice, and without costs, expenses, or fees in excess of the amount specified in paragraph "2" below.

2. Defendant City of New York hereby agrees to pay plaintiff **JAMES WATSON** the sum of **THIRTY-FIVE THOUSAND (\$35,000.00) DOLLARS**, in full satisfaction of all claims, including claims for costs, expenses and attorney's fees. In consideration for the payment of this sum, plaintiff agrees to the dismissal of all the claims against the defendants City of New York, Leander Feaggins, Neil Lawson, Cortney Allen, and Marshall Monell, and to release all defendants and all present and former employees and agents of the City of New York and the New York City Police Department from any and all liability, claims, or rights of action that have or could have been alleged by plaintiff in this action arising out of the events alleged in the complaint in this action, including claims for costs, expenses and attorney's fees.

3. Plaintiff shall execute and deliver to defendants' attorney all documents necessary to effect this settlement, including, without limitation a General Release based on the terms of paragraph 2 above and an Affidavit of No Liens.

4. Nothing contained herein shall be deemed to be an admission by the defendants that they have in any manner or way violated plaintiff's rights, or the rights of any other person or entity, as defined in the constitutions, statutes, ordinances, rules or regulations of the United States, the State of New York, or the City of New York or any other rules, regulations or bylaws of any department or subdivision of the City of New York. This stipulation and settlement shall not be admissible in, nor is it related to, any other litigation or settlement negotiations.

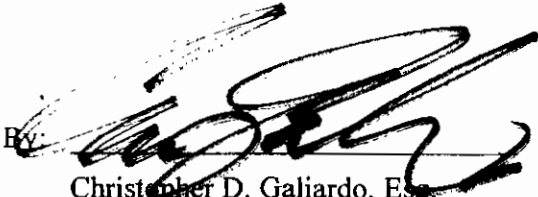
5. Nothing contained herein shall be deemed to constitute a policy or practice of the City of New York or any agency thereof.

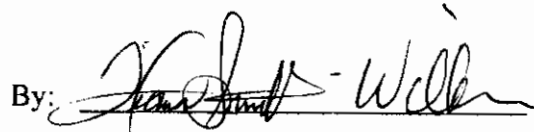
6. This Stipulation and Order contains all the terms and conditions agreed upon by the parties hereto, and no oral agreement entered into at any time nor any written agreement entered into prior to the execution of this Stipulation and Order regarding the subject matter of the instant proceeding shall be deemed to exist, or to bind the parties hereto, or to vary the terms and conditions contained herein.

Dated: New York, New York
February 11, 2009

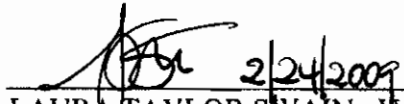
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By: 
Christopher D. Galiardo, Esq.
(CG7285)

By: 
Qiana Smith-Williams (QS2172)
Assistant Corporation Counsel

SO ORDERED:

 2/24/2009
LAURA TAYLOR SWAIN, U.S.D.J.